



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PLTA-24-5 – Amending UDC Sections 1.4.4.c, 5.1.4 Table 5-2, 5.7.4, and 6.2.4 Table 6-2
Date: May 28, 2024

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/28/2024
- Public Services Committee 6/4/2024
- Second reading 6/10/2024
- Public Services Committee 6/18/2024
- Third and final reading 6/24/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their May 20, 2024, meeting and unanimously voted to recommend the Governing Body approve the proposed text amendment.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 1.4.4.c SERVICE USES, TABLE 5-1 ZONING DISTRICT USES, SECTION 5.7.4 CHILD CARE USES, AND TABLE 6-2 REQUIRED PARKING OF THE UNIFIED DEVELOPMENT CODE, CHANGING CHILD CARE REQUIREMENTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on May 20, 2024, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.4.c Service Uses, of Article 1, General Provisions, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

Family Child Care Home (FCCH). A Service use where preschool care and education is provided for up to 10 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Family Child Care Center (FCCC). A Service use where preschool care and education is provided for up to 15 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Child Care Center (CCC). A Service use where preschool care and education is provided for children on a regular basis not located in any person's residence.

Section 4. That Section 5.1.4, Table 5-1 Zoning District Uses, of Article 5, Zoning Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	AD	SS	PUD	M	AHR	CHR
▼ CATEGORY OF USES / SPECIFIC USES																								
Residential Uses																								
Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P				P			
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P				P			
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P				P			
Cottage Lots				C	C	C	C	P	P			P				P	P				P			
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C			P			
Dormitories					C	A						P				P	P				P			
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P			P			
Live/Work					C	P		C	A	P	P	P				P	P	P			P			
Mixed-use Dwelling										P	P	P				P	P	P			P			
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A				P			
Urban Loft Building									C	P	C	C				C	P				P			
Manufactured housing parks		C		C	C	C															P			
Civic Uses																								
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A			P			
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A			P			
Cemeteries	A									A	A	P	C		C	A	A	A			P			
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A			P			
Educational facilities											P	P			P		A	A			P			
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A			P			
Developed Athletic Field or Stadium											C		C		C		C	C			P			
Service Uses																								
Service Business - Limited										P	P	P				A	P	P			P			
Service Business - General										C	P	P				C	C				P			
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P			P			
Animal Care - Kennel	P	C									P		P								P			
Animal Care - Hospital / Clinic	C	C								C	P	C					C				P			
Child Care - In Home - Minor Family Child Care Home (FCCH)	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P			P			
Child Care - In Home - Major Family Child Care Center (FCCC)	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P			P			
Child Care - Center - Minor Child Care Center (CCC)	A	C	A	C	C	C	C	C	C	P	P	P				C	P	P			P			
Child Care - Center - Major	E	E	E							P	P	P				P	P	P			P			
Emergency Shelter											P		C											
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P			P			

Planned District - uses subject to a development plan
 Federal Property - No City authority over uses
 Overlay District - uses subject to base zoning district
 Overlay District - uses subject to base zoning district

Section 5. That Section 5.7.4 Child Care Uses, of Article 5, Zoning Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

5.7.4 Child Care Uses

In districts where child care uses are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

- a. Family Child Care Home (FCCH)
 - 1. Shall be located within the primary residence of the owner.
 - 2. No more than 10 children shall be permitted.
 - 3. All requirements of the Wyoming Department of Family Services shall be met.
- b. Family Child Care Center (FCCC)
 - 1. Shall be located within the primary residence of the owner.
 - 2. No more than 15 children shall be permitted.
 - 3. All requirements of the Wyoming Department of Family Services shall be met.
 - 4. Parking will be required per Section 6.2.4, Table 6-2.
- c. Child Care Center (CCC)
 - 1. Shall not be located within a residence.
 - 2. All requirements of the Wyoming Department of Family Services shall be met.
 - 3. Parking will be required per Section 6.2.4, Table 6-2.
- d. Child Care provided as an accessory/secondary use to a commercial or industrial business is permitted in any zone district and must meet all requirements of the Wyoming Department of Family Services.

Table 5-3: Reserved.

Section 6. That Section 6.2.4, Table 6-2, Required Automobile Parking, of Article 6, Design Regulations, Parking, Lot Access and Circulation, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended to add Family Child Care Center (FCCC) and Child Care Center (CCC) with the following parking requirements:

Family Child Care Center (FCCC)

- 1 space per employee
- 1 visitor space

Child Care Center (CCC)

- 1 space per employee
- 1 space for each 20 children at maximum capacity
- Plus 2 required spaces

Section 7. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 1.4.4.c SERVICE USES, TABLE 5-1 ZONING DISTRICT USES, SECTION 5.7.4 CHILD CARE USES, AND TABLE 6-2 REQUIRED PARKING OF THE UNIFIED DEVELOPMENT CODE, CHANGING CHILD CARE REQUIREMENTS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on May 20, 2024, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.4.c Service Uses, of Article 1, General Provisions, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

~~*Child Care, In-home—Minor Family Child Care Home (FCCH).*~~ A Service use where preschool care and education is provided for ~~3 up~~ to 10 children ~~for a portion of the day in a residential dwelling within the owner's primary residence. The children are not related to the immediate family except that the provider's own pre-school children shall count towards the total. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.~~

~~*Child Care, In-home—Major Family Child Care Center (FCCC).*~~ A Service use where preschool care and education is provided for ~~11 up~~ to 15 children ~~for a portion of the day in a residential dwelling within the owner's primary residence. The children are not related to the immediate family except that the provider's own pre-school children shall count towards the total. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.~~

~~*Child Care, Center—Minor.*~~ A Service use where preschool care and education is provided for ~~under 30 children on a regular basis in a non-residential building.~~

~~*Child Care, Center—Major.*~~ A Service use where preschool care and education is provided for ~~30 children or more on a regular basis in a non-residential building.~~

~~*Child Care Center (CCC).*~~ A Service use where preschool care and education is provided ~~for children on a regular basis not located in any person's residence.~~

Section 4. That Section 5.1.4, Table 5-1 Zoning District Uses, of Article 5, Zoning Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

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▼ CATEGORY OF USES / SPECIFIC USES																								
Residential Uses																								
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Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C		P				
Dormitories					C	A						P				P	P			P				
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Mixed-use Dwelling										P	P	P				P	P	P		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A			P				
Urban Loft Building									C	P	C	C				C	P			P				
Manufactured housing parks		C		C	C	C														P				
Civic Uses																								
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A		P				
Community Assembly (350 - 1000 maximum occupancy)										A	A	P	C		C	A	A	A		P				
Cemeteries	A									A	A	P	C		C	A	A	A		P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A		P				
Educational facilities											P	P			P		A	A		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A		P				
Developed Athletic Field or Stadium											C		C		C		C	C		P				
Service Uses																								
Service Business - Limited										P	P	P				A	P	P		P				
Service Business - General										C	P	P				C	C			P				
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Animal Care - Kennel	P	C									P		P							P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C			P				
Child Care - In Home - Minor Family Child Care Home (FCCH)	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P		P				
Child Care - In Home - Major Family Child Care Center (FCCC)	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P		P				
Child Care - Center - Minor Child Care Center (CCC)	A	C	A	C	C	C	C	C	C	P	P	P				C	P	P		P				
Child Care - Center - Major	€	€	€							P	P	P				P	P	P		P				
Emergency Shelter											P		C											
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P		P				

Planned District - uses subject to a development plan
 Federal Property - No City authority over uses
 Overlay District - uses subject to base zoning district
 Overlay District - uses subject to base zoning district

Section 5. That Section 5.7.4 Child Care Uses, of Article 5, Zoning Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

5.7.4 Child Care Uses

In districts where child care uses are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

a. Family Child Care Home (FCCH)

1. Shall be located within the primary residence of the owner.
2. No more than 10 children shall be permitted.
3. All requirements of the Wyoming Department of Family Services shall be met.

b. Family Child Care Center (FCCC)

1. Shall be located within the primary residence of the owner.
2. No more than 15 children shall be permitted.
3. All requirements of the Wyoming Department of Family Services shall be met.
4. Parking will be required per Section 6.2.4, Table 6-2.

c. Child Care Center (CCC)

1. Shall not be located within a residence.
2. All requirements of the Wyoming Department of Family Services shall be met.
3. Parking will be required per Section 6.2.4, Table 6-2.

d. Child Care provided as an accessory/secondary use to a commercial or industrial business is permitted in any zone district and must meet all requirements of the Wyoming Department of Family Services.

Table 5-3: Reserved.

Section 6. That Section 6.2.4, Table 6-2, Required Automobile Parking, of Article 6, Design Regulations, Parking, Lot Access and Circulation, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended to add Family Child Care Center (FCCC) and Child Care Center (CCC) with the following parking requirements:

Family Child Care Center (FCCC)

- 1 space per employee
- 1 visitor space

Child Care Center (CCC)

- 1 space per employee
- 1 space for each 20 children at maximum capacity
- Plus 2 required spaces

Section 7. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

PLANNING COMMISSION

MAY 20, 2024

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Section 1.4.4.c, 5.1.4 Table 5-1, 5.7.4 and 6.2.4 Table 6-2.

CASE NUMBER: PLTA-24-5

PREPARED BY: Connor White, Planner II, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Sections 1.4.4.c, 5.1.4 Table 5-1, 5.7.4, and 6.2.4 Table 6-2 as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are to the Child Care requirements of the UDC. The proposed text amendments are to align UDC requirements with the Department of Family Services (DFS). The reason for the changes is due to the confusion as to what is required when someone wants to open up a new child care. The City's regulations did not match what DFS required and made the process more difficult for new child cares.

The first proposed changes are to the definitions. DFS has three types of Child Cares. Family Child Care Home, Family Child Care Center, and Child Care Center. Staffs proposed amendment is to match DFS with the definition of each. The UDC has four definitions for Child Cares which were similar to DFS but had different names and broke Child Care Centers into two, a minor and a major. Staff proposes changing Child Care, In-home-Minor to Family Child Care Home, change Child Care, In home-Major to Family Child Care Center, and change Child Care, Center – Minor and Major to just Child Care Center. DFS does not

delineate between a Child Care Center Minor or Major and just calls it a Child Care Center. These changes will make it less confusing as people read through DFS requirements and then look at the City zoning regulations as the names will be the same.

The second recommended amendment is to allow Child Care Centers as Conditional Uses in the LR, MR, HR, NR-1, NR-2, and NR-3 zone districts. Staff's reasoning is that the UDC allows Primary and Secondary schools as conditional uses within these zone districts and there only slight difference between a school and a child care. This would open up new opportunities for child cares in more locations while also having them go through a public process to determine if the location is suitable. Churches can often be found in residential zones, and a child care can be a weekday use of a church or a re-use opportunity of a church location should the church cease operation.

The third recommended amendment is to 5.7.4, Child Care Uses. Staff proposes removing the table within this section and replacing it with standards that match DFS requirements. DFS has specific standards that all child cares are required to meet. Current UDC requirements add additional burdens to child cares that DFS does not require or allows alternatives to. For instance, the UDC requires an outdoor play area, where DFS allows for an increased indoor play area in place of not providing an outdoor play area. Staff feels that if an applicant is meeting all DFS requirements, the only child care specific zoning requirements we should really look at are the parking requirements (requirements standard to all uses in the zone district would still apply – such as applicable landscaping and pedestrian connections). The proposed amendments to Child Care Uses in 5.7.4 would also allow child care as a permitted accessory use to any permitted commercial or industrial use. This would allow a large-scale business to have a child care on-site for employees despite being in a zone which may not otherwise allow child care uses.

The last recommended amendment is to add the parking requirements into UDC Section 6.2.4 Table 6-2. By placing the parking requirements into this section it would allow for additional ways to receive parking credits and flexibility. Staff proposes that Family Child Care Centers (in home) be required to have 1 space per employee and 1 visitor space. Staff proposes that Child Care Centers be required to have 1 space per employee, 1 space for each 20 children at maximum capacity, and 2 required spaces. As an example, if a Child Care Center has 60 children and 10 employees, the current UDC requirement would be 20 parking spaces. The ITE analysis would suggest only 14 parking spaces are needed. Staff's proposed changes would require 15 parking spaces. A parking worksheet can be accessed [here](#).

PROPOSED AMENDMENTS:

Amend UDC Section 1.4.4.c, Service Uses, specifically Child Care In Home – Minor and Major, and Child Care Center Minor and Major.

~~*Child Care, In-home—Minor Family Child Care Home (FCCH).*~~ A Service use where preschool care and education is provided for ~~3 up~~ to 10 children ~~for a portion of the day in a residential dwelling within the owner's primary residence.~~ ~~The children are not related to the immediate family except that the provider's own pre-school children shall count towards the total.~~ ~~The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.~~

~~*Child Care, In-home—Major Family Child Care Center (FCCC).*~~ A Service use where preschool care and education is provided for ~~11 up~~ to 15 children ~~for a portion of the day in a residential dwelling within the owner's primary residence.~~ ~~The children are not related to the immediate family except that the provider's own pre-school children shall count towards the total.~~ ~~The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.~~

~~Child Care, Center—Minor. A Service use where preschool care and education is provided for under 30 children on a regular basis in a non-residential building.~~

~~Child Care, Center—Major. A Service use where preschool care and education is provided for 30 children or more on a regular basis in a non-residential building.~~

Child Care Center (CCC). A Service use where preschool care and education is provided for children on a regular basis not located in any person's residence.

Amend UDC Section 5.1.4, Table 5-1, to match the definition changes and allow Child Care Centers as Conditional Uses in the LR, MR, HR, NR-1, NR-2, and NR-3 zone districts. See attachment 1.

Amend UDC Section 5.7.4, Child Care Uses to the following:

In districts where child care uses are allowed, they shall meet the following standards in addition to all other lot and building standards for the district.

~~(Delete existing table and replace with the following below.)~~

- a. Family Child Care Home (FCCH)
 1. Shall be located within the primary residence of the owner.
 2. No more than 10 children shall be permitted.
 3. All requirements of the Wyoming Department of Family Services shall be met.
- b. Family Child Care Center (FCCC)
 1. Shall be located within the primary residence of the owner.
 2. No more than 15 children shall be permitted.
 3. All requirements of the Wyoming Department of Family Services shall be met.
 4. Parking will be required per Section 6.2.4, Table 6-2.
- c. Child Care Center (CCC)
 1. Shall not be located within a residence.
 2. All requirements of the Wyoming Department of Family Services shall be met.
 3. Parking will be required per Section 6.2.4, Table 6-2.
- d. Child Care provided as an accessory/secondary use to a commercial or industrial business is permitted in any zone district and must meet all requirements of the Wyoming Department of Family Services.

Amend UDC Section 6.2.4 Table 6-2, to add Child Care Parking requirements. See attachment 2.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

This proposed text amendment is necessary to address an issue not anticipated in the Comprehensive Plan when the Unified Development Code (UDC) was adopted. DFS has changed its requirements over the years and the UDC has not been updated to match what changes have been made. Plan Cheyenne encourages changes that align with market demand and child cares are in demand, but the current regulations can make them challenging to fit into locations throughout the City.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601.

The governing body of any city or town, by ordinance, may:

(d) All regulations shall be made:

(i) In accordance with a comprehensive plan and designed to:

- (A) Lessen congestion in the streets;
- (B) Secure safety from fire, panic and other dangers;
- (C) Promote health and general welfare;
- (D) Provide adequate light and air;
- (E) Prevent the overcrowding of land;
- (F) Avoid undue concentration of population; and
- (G) Facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements.

Assessment: This amendment proposes modifying the Unified Development Code to align with DFS regulations and make things clearer for those looking to operate a child care.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment provides aligning regulations with DFS and reducing parking requirements slightly to help promote more child cares throughout the community. These changes will make it easier for those looking to start up a child care as it would match DFS requirements, making the process less confusing.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code Sections 1.4.4.c, 5.1.4 Table 5-1, 5.7.4, and 6.2.4 Table 6-2 as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

Attachments:

1. Table 5-1
2. Table 6-2
3. [Parking Worksheet](#)

ARTICLE 5

ZONING REGULATIONS

5.1 GENERAL PROVISIONS

TABLE 5-1: ZONING DISTRICT USES

ZONING DISTRICTS ►	AG	AR	RR	LR	MR	HR	NR-1	NR-2	NR-3	NB	CB	CBD	LI	HI	P	MUR	MUB	MUE	AD	SS	PUD	M	AHR	CHR
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Detached Dwelling	P	P	P	P	P	P	P	P	P			P				P	P			P				
Semi-attached Dwelling ("Duplex")				P	P	P	P	P	P			P				P	P			P				
Attached Dwelling ("Townhouse")					P	P		P	P			P				P	P			P				
Cottage Lots				C	C	C	C	P	P			P				P	P			P				
Group Housing				C	C	C	C	C	C	C	C	C	C	C		C	C	C		P				
Dormitories					C	A						P				P	P			P				
Multi-dwelling Building ("Apartment")					C	P		P/C	P		C					P/C	P	P		P				
Live/Work					C	P		C	A	P	P	P				P	P	P		P				
Mixed-use Dwelling										P	P	P				P	P	P		P				
Accessory Dwelling	A	A	A	A	A	A	A	A	A			A				A	A			P				
Urban Loft Building									C	P	C	C				C	P			P				
Manufactured housing parks		C		C	C	C														P				
Civic Uses																								
Neighborhood Assembly (<350 maximum occupancy)	C	C	C	C	C	C	A	A	A	A	A	P	C		C	A	A	A		P				
Community Assembly (350 - 1000 maximum occupancy)											A	A	P	C		C	A	A	A	P				
Cemeteries	A										A	A	P	C		C	A	A	A	P				
Primary and secondary schools	C	C	C	C	C	C	C	C	C	A	A	P			P	A	A	A		P				
Educational facilities											P	P			P		A	A		P				
Community Athletic Field				C	C	C	C	C	C	A	A				P	A	A	A		P				
Developed Athletic Field or Stadium											C		C		C		C	C		P				
Service Uses																								
Service Business - Limited										P	P	P				A	P	P		P				
Service Business - General										C	P	P				C	C			P				
Assisted Living / Nursing Home	C	C	C	C	C	A	C	C	C	C	C				P	P	P	P		P				
Animal Care - Kennel	P	C									P		P							P				
Animal Care - Hospital / Clinic	C	C								C	P	C					C			P				
Child Care, In Home - Minor Family Child Care Home (FCCH)	P	P	P	P	P	P	P	P	P	P	P	P				P	P	P		P				
Child Care, In Home - Major Family Child Care Center (FCCC)	A	A	A	A	A	A	A	A	A	P	P	P				A	P	P		P				
Child Care, Center - Minor Child Care Center (CCC)	A	C	A	C	C	C	C	C	C	P	P	P				C	P	P		P				
Child Care, Center - Major	€	€	€							P	P	P					P	P		P				
Emergency Shelter											P		C											
Entertainment, Indoor Recreation Facility				C	C	C	C	C	C	C	P	P	P		A	C	P	P		P				

Planned District - uses subject to a development plan

Federal Property - No City authority over uses

Overlay District - uses subject to base zoning district

Overlay District - uses subject to base zoning district

P = Use permitted by right
(blank = prohibited use)

A = use permitted after administrative review

C = Use permitted after conditional discretionary review

TABLE 6-2: REQUIRED AUTOMOBILE PARKING

Use	Parking Spaces
Assembly (auditorium, stadium, church, etc.)	1 space per each 5 seats (maximum capacity)
Bed and breakfasts, boardinghouse and/or lodging house	1 space per each 2 bedrooms
Hospitals	2 spaces per each bed
Hotels and motels	1 space for each rental unit plus 1 space for each 2 employees at maximum employment on a single shift Plus 1 space for each company vehicle regularly parked on the premises Accessory uses (dining, banquette) shall satisfy their parking requirement separately according to this table.
Industrial and Warehousing	1 space for each two employees at maximum employment on a single shift Plus 1 space for each company vehicle regularly parked on the premises
Nursing homes and assisted living facilities	1 space for each 5 beds for shared living facilities 1 space for each 3 independent living units Plus 1 space for each employee at maximum employment on a single shift Plus 1 visitor space for every 10 beds or 5 independent living units
General offices	< 50,000 square feet: 1 space per 300 square feet ≥ 50,000 square feet: 1 space per 400 square feet
Medical offices	1 space per 200 square feet
Residential: Detached, Semi-Attached, and Attached Dwellings	2 spaces per dwelling unit
Residential: all others	1.0 space per unit for studio or one bedroom 1 space per unit for age restricted senior housing 1.5 spaces per dwelling unit
Retail - generally	< 25,000 square feet: 5 spaces per 1,000 square feet 25,000 to 400,000 square feet: 4 spaces per 1,000 square feet 400,000 to 600,000 square feet: 4.5 spaces per 1,000 square feet > 600,000 square feet: 5 spaces per 1,000 square feet
Retail – Large product sales (automobiles, RVs, boats, farm implements, appliances, tree nurseries and garden centers, etc.)	1 space per 20,000 square feet
Restaurants	< 2,000 square feet: 5 spaces per 1,000 square feet 2,001 - 5,000 square feet: 10 spaces per 1,000 square feet > 5,000 square feet: 20 spaces per 1,000 square feet Plus 1 space per each 2 employees at maximum employment on a single shift.
Schools	K through 9: 1 space for each 15 students at maximum capacity 10 through 12: 1 space for each 4 students at maximum capacity College and technical schools: 1 space for each 2 students at maximum capacity
Family Child Care Center (FCCC)	1 space per employee 1 visitor space
Child Care Center (CCC)	1 space per employee 1 spaces for each 20 children at maximum capacity Plus 2 required spaces.